

IIED must be directed at the complaining party. (*Christensen v. Sup. Ct.* (1991) 54 Cal.3d 868.) Plaintiff contends that the factual allegations which support an inference of reckless disregard are that “Defendant knowingly continued business practices that exposed customers to a known risk of sexual assault and therefore minimized Plaintiff’s report.” (Opposition, 9:15-17.) These allegations do not meet the standard for intent required or are otherwise not conduct directed at the Plaintiff.

Demurrer as to 1st, 2nd and 3rd Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 15 days.

Case Management Conference rescheduled from 7.28.26 to 9.29.26.

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CASE #	CASE NAME	HEARING NAME
CVPS2600719	MUNOZ MACIAS VS ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION	MOTION TO COMPEL ARBITRATION BY FRANCISCO DE LA CRUZ, JOHNNY MENDEZ, ARMANDO ALVAREZ, JAVIER ROSALES

Tentative Ruling:

Motion to Compel Arbitration GRANTED.

Case Management Conference set for 8.17.26 is vacated.

Status hearing re arbitration scheduled for 1.14.27. Parties to submit a declaration 10 days prior to the status hearing addressing arbitration status.